

NONCONFORMITY

A review of the Core Zoning Code's nonconformity provisions, the Maine law that governs them, and proposed language – Planning Board discussion memo

September 17, 2026. Prepared after the adoption of CZC v1.0 at the Special Town Meeting of September 14, 2026. This memo reviews what the Code says about nonconformity, checks it against Maine law and against what other Maine towns do, argues for and against the choices it contains, and proposes replacement language. It stops short of a draft amendment: nothing here has been written into the Code.

Shoreland zoning is out of scope by direction. It cannot be ignored entirely – the mandatory shoreland minimums override contrary local text by their own terms – so this memo notes the boundary where it matters and leaves the shoreland ordinance itself for separate work.

On the citations. Every statute, rule and case cited here was run to a primary source during the research behind this memo. That research also turned up five case names that circulate in secondary summaries of Maine nonconformity law and **do not exist**, and two citations that automated tools reported incorrectly from the right page. Before any of this text reaches a warrant article, a brief or a Board decision, **town counsel should cite-check it on Westlaw or Lexis**. Treat the reasoning as sound and the citation numerals as provisional.

1. THE SHORT VERSION

1. **None of this text is ours.** Every nonconformity provision in the Code – the general section and all ten per-topic subsections – came word for word from the Code the Town adopted on November 3, 2020, and was carried into v1.0 unchanged. The only nonconformity law this project wrote is Article 3 §14, Nonconforming Thoroughfares. Both broken cross-references in the area are inherited too.
2. **The Code regulates nonconformity in twelve places with no rule about which one governs.** A burned building triggers four provisions that give four different answers.
3. **Maine gives almost no help.** Outside the shoreland zone, the state's zoning enabling act does not regulate nonconformities at all. Whatever the ordinance does not say, the common law fills in – usually against the Town.
4. **Three provisions look legally exposed:** the six-month abandonment rule for uses, the unstandardized assignment of a building type to a nonconforming building, and the two definitions in Article 9.
5. **One is a live gap the form-based structure created:** the Code makes most existing buildings nonconforming as to form, and then offers no variance route for form standards.
6. **Two things are better than peer practice and should be defended:** the burden-of-proof rule in §25.d, and Article 3 §14.

2. WHERE NONCONFORMITY LIVES TODAY

Location	What it governs
Art 1 §1.b.5	Applicability on alteration, enlargement, discontinuance
Art 2 §2.d	Nonconforming lots – two sentences
Art 3 §14	Nonconforming thoroughfares
Art 4 §3.j · §8.e · §12.e	Parking · fences and walls · lighting
Art 5 §12.d · §15	Shopfronts · nonconforming buildings
Art 6 §1.b.2–3 · §2.f · §5.d · §6.d	Design-standard exemption · components · roofs · windows and doors
Art 7 §1.f	Nonconforming uses
Art 8 §25	The general provision

Location	What it governs
Art 9	"Nonconformity", "Nonconforming Conditions", "Assigned", "Abandoned"

Supporting machinery: Art 8 §7 written interpretations · §19 variances · §23 administrative appeals · §10–11 project-plan triggers for "changes to a nonconforming lot, use, structure, site improvement".

Provenance. All twelve are identical to the 2020 adopted text; only article numbers moved when Thoroughfares was inserted at 3. This project's only edits were a typo fix in the fences subsection and repointing the Article 2 frontage rule from the repealed RDEO to Article 3.

Worth knowing for reconciliation. The other planner's Fall-2026 redline touches nonconformity in three places, all deletions: it strikes "Nonconforming lots may not be further subdivided", and strikes both the Small and Large Project Plan triggers for changes to a nonconforming lot, use or structure. The second and third conflict with v1.0, which kept those triggers.

3. THE LEGAL FRAME

3.1 MAINE LEAVES THIS TO US

Maine's zoning enabling act, 30-A M.R.S. ch. 187, contains **two** uses of the word "nonconforming" in the entire chapter. There is no general statute on nonconforming lots, uses or structures, and no general merger statute. (30-A §4358, often cited for nonconforming lots, is *Regulation of manufactured housing*.) Outside the shoreland zone this article is home-rule drafting on a common-law canvas: **every silence is filled by a default the Town did not choose**.

3.2 TWO CANONS THAT POINT IN OPPOSITE DIRECTIONS

"zoning provisions that restrict nonconformities are liberally construed, and zoning provisions that allow non-conformities are strictly construed" — *Day v. Town of Phippsburg*, 2015 ME 13

"A goal of zoning is to eliminate, not perpetuate, nonconformance." — *Hill v. Town of Wells*, 2021 ME 38 ¶ 28

Against that sits the ordinary canon that provisions restricting the use of property are construed strictly against the municipality. The practical consequence is the point: **an ambiguous nonconformity clause is genuinely unpredictable in Maine**. Precision is not stylistic.

3.3 BURDEN OF PROOF – THE SENTENCE TO COPY

"It was Seymour's burden to prove the status of the new gravel pit as an existing nonconforming use." — *Town of Levant v. Seymour*, 2004 ME 115 ¶ 19

The Levant ordinance itself codified the allocation, and the Court enforced it:

"The burden of proof establishing that any non-conformity is a legal non-conformity shall, in all cases, be upon the owner of such non-conformity and not upon the Town of Levant."

But the burden flips. Once nonconforming status is established, the Town bears the burden of proving a later illegal expansion (*Mason v. Crooker-Mulligan*, 570 A.2d 1217, 1220 (Me. 1990)). A burden clause that over-claims will be read against the Town on the expansion half.

3.4 THE DRAFTING SOURCE MAINE ACTUALLY HAS

DEP's shoreland guidelines, 06-096 C.M.R. ch. 1000 §12, are the most tested nonconformity text in Maine, and most towns copy them. They bind only in the shoreland zone, **but nothing stops the Town from borrowing their drafting town-wide**, which is the single cheapest way to make our provisions recognisable to a reviewing court. The pieces worth borrowing are quoted in §6.

3.5 WHAT STATE LAW COMPELS REGARDLESS OF WHAT WE WRITE

30-A M.R.S. §4364-B: an accessory dwelling unit **must** be allowed on a lot that does not conform to the zoning ordinance “if the accessory dwelling unit does not further increase the nonconformity”; one ADU is exempt from density calculations; the Town may not impose an owner-occupancy requirement. Any nonconformity rule that flatly bars added dwelling units on nonconforming lots is preempted to that extent.

3.6 THE RELIEF VALVE THE STATUTE OFFERS, WHICH WE DO NOT USE

30-A M.R.S. §4353(4) sets a four-part conjunctive undue-hardship test that is close to unwinnable. But §4353(4-C) ends with this delegation:

“A zoning ordinance also may explicitly delegate to the municipal reviewing authority the ability to approve development proposals that do not meet the dimensional standards otherwise required, in order to promote cluster development, to accommodate lots with insufficient frontage or **to provide for reduced setbacks for lots or buildings made nonconforming by municipal zoning. As long as the development falls within the parameters of such an ordinance, the approval is not considered the granting of a variance.**”

Two conditions: it must be **explicit** in the ordinance, and it does not reach the shoreland zone. This is the statutory hook for handling nonconforming-lot and nonconforming-building relief as a permit rather than a variance. **We have not taken it.**

4. THE CRITIQUE

F1 – FOUR ANSWERS TO “IT BURNED DOWN” · SEVERITY: HIGH

Provision	What it says
Art 8 §25.f	Zoning Permit within one year of damage or destruction, one-year extension available; otherwise no reestablishment unless it conforms
Art 5 §15.c.9	A destroyed Main Building Mass “must be rebuilt to meet the standards of this Code” – no window, no restoration option
Art 6 §5.d.3	A damaged or destroyed roof “may be repaired or rebuilt to its previous condition” – no conformity requirement
Art 7 §1.f.5	“When a structure containing a nonconforming use is damaged or destroyed, the use may be reestablished”

One fire triggers all four. The Code has three conflict rules – text beats graphics (Art 1 §2.c.1), this Code beats other ordinances (§4.c.3), state and federal law beat this Code (§4.c.4) – and **none for a conflict between two provisions of this Code**. Art 1 §2.d.2 makes the problem worse by declaring that “All of the terms of this Code are legally binding, whether or not they are numbered. Purpose and Applicability sections are binding regulations.” Every one of the four is binding text.

Maine check. There is no inherent right to rebuild; it “hinges on whether the ordinance expressly allows it... even where the original building was destroyed by fire or natural disaster” (MMA, Planning Board Manual, citing *Sprague*). And where two clauses collide, the Law Court harmonises them rather than picking a winner – in *Wolfram v. Town of North Haven*, 2017 ME 114, the expansion clause won and the casualty clause was held not to reach the case at all.

F2 – ARTICLE 6 CONTRADICTS ITSELF · SEVERITY: HIGH

§1.b.2 exempts renovations and reconstruction of nonconforming structures from the Design Standards entirely; §1.b.3 grandfathers removed components for 12 months; §2.f.4 requires a destroyed component to be rebuilt to Code. All three are binding under Art 1 §2.d.2.

F3 – BOTH DEFINITIONS ARE DEFECTIVE · SEVERITY: HIGH

“**Nonconformity**” requires that the thing “at the time of its legal establishment, was in compliance with the zoning regulations.” Anything built before Newcastle had zoning was never in compliance with zoning regulations, because there were none. On its face the definition **excludes the largest class of nonconformities in**

town. The tested formulation is DEP’s: allowed “solely because it was in lawful existence at the time this Ordinance or subsequent amendments took effect.”

“Nonconforming Conditions” states an operative rule inside a definition, says “this Ordinance” in a Code that calls itself “this Code”, and ends “complies with this section” — there is no section in Article 9.

Maine check. This is the exact failure mode in *Oliver v. City of Rockland*, 1998 ME 88, where a use-only definition simply did not reach a nonconforming structure in conforming use. MMA frames the omission of any of the three categories as a constitutional problem, citing *Sprague*.

F4 – THE V1.0 AMENDMENT MAY NOT BE COVERED · SEVERITY: HIGH, AND NEW

§25.a.1, §25.b.1 and §25.d.1 key to what existed “prior to the adoption of this Code”. The Town amended the Code on September 14, 2026. Does “this Code” mean the Code adopted in 2020, or as amended? “Nonconforming Conditions” says “or subsequent amendments”; “Nonconformity” and §25 do not. Article 3 §14 avoids this by keying to “the effective date of this Article.” **Anything made nonconforming by the v1.0 amendment is currently protected only by the weaker of the two definitions.**

F5 – THE MOST CONSEQUENTIAL DECISION IN THE CODE HAS NO CRITERIA · SEVERITY: HIGH

Art 8 §25.e.2 requires the CEO’s written interpretation to “assign a building type, components, roof type, and any other features to the nonconforming building, to set the baseline for modifications that can be legally made.” Art 5 §15.c.3–5 then measures every permitted expansion against “the assigned building type.” Article 9 defines “Assigned” as determining the “closest reasonable” feature — that is the entire standard. No criteria, no findings, no notice to the owner, no recording.

Two aggravators. Art 8 §7.c.3 says a written interpretation “cannot contradict or override any standards of this Code” — yet under §25.e.2 the interpretation is the standard for that building. And research across national form-based codes found **no code that formally reassigns a nonconforming building to its closest building type.** The mechanism is a Newcastle invention. That is not a criticism of the idea, which is a sensible answer to a real form-based problem — it is a reason it needs criteria, because there is no borrowed practice to fall back on and no deference available for an official’s unguided choice.

F6 – THE APPEAL CLOCK CAN RUN BEFORE THE OWNER KNOWS · SEVERITY: MEDIUM

Art 8 §23 gives 30 days from the CEO’s action. §25.e requires no notice to the owner. The cross-reference that would have imported the Clerk-filing requirement of §7.d.1.c does not resolve (F14).

F7 – UNDEFINED AND CIRCULAR TRIGGERS · SEVERITY: HIGH

“Routine repair and maintenance”, “destroyed”, “damaged”, “requires total replacement”, “requires a total reconstruction” appear throughout and are defined nowhere. “Destroyed and requires total replacement” is circular. Under Art 1 §2.b.2, an undefined term takes its Webster’s meaning — which is how a \$200,000 dispute gets decided by a dictionary.

Maine check. This is precisely what cost Rockport its case: with “no more nonconforming” undefined, the Court applied the restrictive reading (*Lewis v. Town of Rockport*, 1998 ME 144), and DEP then wrote the definition Rockport had lacked. Note also that Art 3 §14.d.2 defines “substantial reconstruction” for thoroughfares, and Art 4 §3.j.2 then uses that term for parking lots, where it is undefined and resolves to the dictionary instead.

F8 – TWO ABANDONMENT CLOCKS, AND THE WRONG WORD · SEVERITY: HIGH

Article 9 defines “Abandoned” as vacant and unoccupied “for a period of one year or more”; Art 4 §12.e.5 and Art 5 §15.c.12 hang consequences on that. Art 7 §1.f.4 makes six months of discontinued “active and continuous operation” an abandonment of a nonconforming use.

Maine check. The word matters more than the period:

“To prove abandonment there must be ‘some clear and unmistakable act or series of acts’ to indicate a purpose to relinquish a right... The party asserting abandonment bears the burden of proving both the intention to abandon and actual abandonment... Non-use, even for lengthy periods of time, is, of itself, insufficient to show an abandonment of a right.” — *Pleasant View Mobile Home Park v. Town of Mechanic Falls*, 538 A.2d 273 (Me. 1988)

Saying “abandonment” hands the landowner three things at once: an intent element, the burden on the Town, and the rule that non-use alone never suffices. Ordinances written in cessation terms (“discontinued”, “ceases”) have been applied in Maine with no intent analysis at all. The Law Court has never squarely held that intent is not required – the one appeal that raised it cleanly was decided on other grounds – so this rests on consistent application plus practitioner guidance rather than a square holding.

Peer check. Across nine Maine towns read in full, discontinuance periods run from 90 days to 36 months and cluster at 12–24. **The only other six-month clause found is a legacy waterfront provision in Rockland that sits inconsistently beside that town’s own two-year rule.** DEP uses one year, with a good-cause extension and a residential carve-out. Damariscotta – our neighbour – is the instructive outlier: it treats discontinuance as a rebuttable presumption the Board can excuse for extenuating circumstances.

§1.f.4 also collides with §1.f.5: if a fire puts a use out of operation for eight months, one clause says the use is gone and the other says it may be reestablished.

F9 – NO RELIEF ROUTE FOR FORM STANDARDS · SEVERITY: HIGH

Art 8 §19.b.1 bars use variances by statute. §19.b.2 allows practical-difficulty variances only for “lot area, lot coverage, frontage and setback requirements.” Massing, building type, roof, shopfront, component and frontage-composition standards have **no variance route**. In a use-based code that gap is narrow. In a form-based code it is the main event: the form standards are what most existing buildings fail. The only flexibility is the unstandardized assignment in F5, and §4353(4-C)’s delegation (§3.6) is unused.

F10 – DANGLING CATEGORIES · SEVERITY: LOW, BUT CHEAP TO FIX

Both definitions and §25.a–b govern nonconforming **signs** and **site characteristics**. The Code has no sign standards and does not define site characteristics. §25.b.1 also lists “roads”, which Article 3 §14 governs on different terms.

F11 – BUILDING VERSUS STRUCTURE · SEVERITY: MEDIUM

Article 9: “Building”... “Not synonymous with Structure.” §25 governs “structures”; Art 5 §15 governs “buildings” (reaching “buildings, accessory buildings, and additional structures”); Art 6 §1.b.2 says “structures or components”; Art 1 §1.b.5 says “use, structure, or activity.” *Oliver* is the case that punishes this.

F12 – NONCONFORMING LOTS ARE TWO SENTENCES · SEVERITY: HIGH

Art 2 §2.d says nonconforming lots may not be further subdivided, and that a lot nonconforming as to width or area may be developed if setbacks are met. There is no merger rule, no treatment of adding land to or dividing a nonconforming lot, and no reference to the State Minimum Lot Size Law. Article 9 makes “Lot” synonymous with “Lot of Record”, collapsing a distinction other codes rely on.

Maine check. Merger must be **express** – Maine courts will not imply it (*Moody v. Town of Wells*, 490 A.2d 1196 (Me. 1985); *Powers v. Town of Shapleigh*, 606 A.2d 1048 (Me. 1992)) – and merger clauses are read narrowly (corner lots, landlocked back lots, lots fronting different streets). The governing statute is 12 M.R.S. §§4807-A to 4807-D, under which contiguous lots in the same ownership on or after October 3, 1973 are considered one lot, subject to the §4807-D exemption. Where a local minimum differs from the State’s, the ordinance controls the merger question – so silence here is a choice, and not one the Town has made deliberately.

F13 – ART 1 §1.B.5 OVERSHOOTS · SEVERITY: MEDIUM

Read literally it applies the whole Code to any “alteration, enlargement, or discontinued use of a nonconforming use, structure, or activity.” Every detailed section contradicts it.

F14 – STALE CROSS-REFERENCES · SEVERITY: LOW, INHERITED

- Art 8 §25.e.1 cites “Article 8.A.6 Written Interpretation”; written interpretations are Art 8 §7.
- The district pages (Article 2) cite “Article 5 Section 3 Nonconforming Buildings” twice; nonconforming buildings are Art 5 §15, and §3 is Building Assembly.

F15 – DRAFTING DRIFT · SEVERITY: COSMETIC

“non-conforming” hyphenated five times in Articles 2, 5 and 6; “this Ordinance” three times; §25.f lettered a–c where every sibling uses numbers; “All of the terms **is** this Code” in Art 1 §2.d.2.

5. WHAT TO KEEP, AND DEFEND

§25.d, the burden of proof. Across nine peer ordinances, burden of proof is essentially unaddressed as a nonconformity-specific issue. Ours states it. That is ahead of local practice and aligned with *Levant*. It needs one qualification (the *Mason* flip) and a workable evidence standard, not replacement.

The permissive posture of the per-element rules. Routine maintenance allowed, alteration toward conformity allowed, repair of partial damage allowed. National form-based practice says exactly this: treat structures more permissively than uses, and expect form nonconformity to be the normal case rather than the exception. The per-element sections are more generous than a conventional code, and that is right for a form-based code in a town of pre-1900 buildings.

Article 3 §14. Purpose, applicability, continuation, a defined reconstruction trigger, an explicit rule that a way serving three or four dwellings may continue indefinitely, a reclassification escape valve, and an acceptance rule. It is the template.

The “Assigned” concept. It answers a real problem no other code has solved. Keep the idea; give it criteria.

6. THE CENTRAL CHOICE: CONSOLIDATE, OR KEEP THE PER-ELEMENT STRUCTURE?

THE CASE FOR CONSOLIDATING INTO ONE ARTICLE

- One place to look; one set of defined terms; no tiebreaker needed because there is nothing to tie.
- It is what most reviewed codes do – Beaufort County, Buffalo, Miami 21, and the Maine peers that are best drafted (Freeport’s four-part section is the clearest example found).
- It makes the four categories and their cross-products explicit, which is what *Oliver* and MMA’s constitutional framing call for.
- Conflicts like F1 and F2 cannot survive consolidation; they are artifacts of separation.

THE CASE FOR KEEPING RULES PER ELEMENT

- The per-element rules are calibrated to the element. A roof, a shopfront and a parking lot do not fail in the same way, and a single rule would either over-restrict roofs or under-restrict lots.
- Users read the Code by subject. An owner replacing windows finds the windows rule in the windows article.
- Billings’ form-based code does distribute renovation triggers per element, which shows the approach is workable – but it keeps them as lettered subsections of **one** section, not scattered across seven articles.
- Consolidation is a larger amendment, and a larger amendment is a larger target at Town Meeting.

RECOMMENDATION

Do both, in the shape Billings uses. Move everything *general* into Article 8 §25 – categories, definitions, effective date, continuation, burden, determinations, restoration, discontinuance, relief – and leave in each article only what is genuinely element-specific, rewritten as an allowance operating within the general rules. Then add the precedence rule, so that any collision that survives has a stated answer. This keeps the readability argument, removes the conflicts, and confines the amendment to §25 plus short replacement subsections.

7. PROPOSED LANGUAGE

Drafting notes, not adopted text. Text marked [borrowed] is quoted or closely adapted from the source named, which is deliberate: recognisable language is easier to defend. Everything else is drafted for this memo and needs counsel’s eye.

7.1 A PRECEDENCE RULE – NEW, ART 8 §25.C

Precedence. Where more than one provision of this Code applies to the same nonconforming condition, the provision governing that specific element applies, and this Section supplies any matter on which that provision is silent. Where two provisions cannot be reconciled, the more restrictive governs. No provision of this Code requires the removal, alteration or discontinuance of a lawfully existing condition except as expressly provided in this Section.

The last sentence is the important one. **[borrowed]** in structure from Tulsa Zoning Code §1.080' s three-part most-restrictive clause.

Argument against: “more restrictive governs” is a landowner-unfriendly default in a code whose per-element rules are deliberately generous. *Answer:* it only operates after specific-over-general has failed, and the savings sentence caps its reach. The Board could instead choose “the more permissive governs for conditions lawfully existing on the effective date” – a real policy choice worth putting to the Board explicitly.

7.2 FOUR CATEGORIES, ONE UMBRELLA – REPLACING BOTH ARTICLE 9 DEFINITIONS

Nonconforming lot – a lot of record that, on the date it became nonconforming, did not meet the area, frontage, or width requirements of the district in which it is located. **[borrowed, DEP Ch. 1000 §17]**

Nonconforming structure – a structure that does not meet one or more dimensional or form standards of this Code, including setback, height, lot coverage, footprint, building type, massing, or component standards, but which is allowed **solely because it was in lawful existence** on the date it became nonconforming. **[borrowed, DEP Ch. 1000 §17, extended to form standards]**

Nonconforming use – a use of a building, structure, premises or land that is not allowed in the district in which it is situated, but which is allowed to remain **solely because it was in lawful existence** on the date it became nonconforming. **[borrowed, DEP Ch. 1000 §17]**

Nonconforming condition – any nonconforming lot, structure or use, and any site feature, component, roof, window, door, shopfront, parking area, fence, wall, lighting fixture or thoroughfare that does not conform to this Code and was in lawful existence on the date it became nonconforming.

Date it became nonconforming – the effective date of this Code, or of the amendment to this Code, that first caused the lot, structure, use or condition not to conform.

That last definition is the fix for F4, and it survives every future amendment without further edits. Delete “Nonconformity” and “Nonconforming Conditions”. Either add sign standards or strike signs from the list; the same for “site characteristics”.

7.3 INCREASE IN NONCONFORMITY – NEW DEFINITION

Increase in nonconformity – any change that causes further deviation from the standard creating the nonconformity. A change that meets the standard, or that causes no further increase in the **linear extent** of the nonconformity, does not increase it. A structure may be expanded laterally provided the expansion extends no further into the area of nonconformity than the closest portion of the existing structure. Included in this allowance are expansions that in-fill irregularly shaped structures. **[borrowed, DEP Ch. 1000 §17]**

This is the definition DEP wrote *after* Rockport lost *Lewis* for not having one. Adopting it is a deliberate choice of the more permissive rule; without it, the restrictive *Lewis* reading is the default.

7.4 RESTORATION – REPLACING §25.F AND THE FOUR COMPETING RULES

Restoration. A nonconforming structure or condition that is **removed, or damaged or destroyed, regardless of the cause [borrowed, DEP Ch. 1000 §12(C)(4)]** may be restored, reconstructed or replaced as follows.

- a. Where the loss is **50% or less of the market value** of the structure before the loss, excluding normal repair and maintenance, it may be reconstructed in place to its previous condition if a Zoning Permit is obtained from the Code Enforcement Officer within **one year**.
- b. Where the loss is **more than 50% of the market value**, it may be reconstructed or replaced if a permit is obtained from the Planning Board within **eighteen months**, provided the reconstruction does not increase the nonconformity.
- c. The Code Enforcement Officer may extend either period once, for up to one year, for good cause.

- d. **Voluntary removal.** A structure removed by the deliberate act of the owner may be replaced under paragraph (b), provided a permit is obtained before removal.

Market value – the estimated price a property will bring in the open market and under prevailing market conditions in a sale between a willing seller and a willing buyer, both conversant with the property and with prevailing general price levels. **[borrowed, DEP Ch. 1000 §17]**

Paragraph (d) exists because of *Wolfram*: a casualty clause keyed to damage and destruction does **not** reach a voluntary teardown, which is the more common case. Market value, not assessed value: no Maine source endorses assessed value, and the state model defines market value.

Argument against a percentage test: it invites appraisal fights, and Miami 21 dropped its 50%-of-value rule for single-family homes after finding it ambiguous about whether the percentage applied to the structure or the use. *Answer*: name the denominator explicitly, as above. *Alternative worth the Board's consideration*: drop the threshold entirely for buildings and allow rebuilding to the prior footprint and dimensions within a fixed window, which is what several codes now do and what insurers and lenders reward (§8).

7.5 DISCONTINUANCE – REPLACING ART 7 §1.F.4

Discontinuance. Where a nonconforming use is **discontinued for any reason for twelve consecutive months**, it may not be resumed, and any subsequent use must conform. The Planning Board may, **for good cause shown by the applicant, grant up to a one-year extension** of that period. This provision does not apply to the resumption of a residential use of a residential structure provided the structure has been used or maintained for residential purposes during the preceding five years. **[borrowed, DEP Ch. 1000 §12(D)(2)]**

Four changes from what we have: the word “discontinued” rather than “abandonment”; twelve months rather than six; a good-cause valve; a residential carve-out that protects seasonal camps. Article 9’s “Abandoned” definition stays for the separate purposes of Art 4 §12.e.5 and Art 5 §15.c.12, but should be renamed **“Vacant building”** so one word does not carry two jobs.

Argument for keeping six months: it clears derelict uses faster, and the Town has lived with it since 2020 without incident. *Answer*: it is unsupported anywhere in Maine, it is out of step with every peer, and the first time it is enforced against a seasonal or fire-interrupted business it will be litigated on the word “abandonment”, which the Town would have to prove with intent.

7.6 THE ASSIGNMENT DETERMINATION – REPLACING §25.E

Determinations. The Code Enforcement Officer determines whether a nonconforming condition exists and, for a nonconforming building, assigns the building type, components, roof type and other features that set the baseline for permitted modification. The determination must:

- state the district, the assigned features, and the standards that will apply;
- state the facts and evidence relied on;
- explain why each assigned feature is the closest reasonable fit, by reference to the building’s existing massing, height, frontage placement, roof form and street relationship;
- be issued in writing within 30 days, filed with the Town Clerk, and **delivered to the owner by mail**;
- remain in effect for the building unless the building is altered in a way that changes the facts relied on; and
- be recorded in a register of nonconforming determinations maintained by the Code Enforcement Officer.

The appeal period under Article 8 Section 23 begins on the date the determination is delivered to the owner. [borrowed in concept, Va. Code §15.2-2311]

Paragraph (c) is the heart of it: it converts “closest reasonable” from an unguided choice into a reasoned one, which is also what earns the CEO deference on appeal. Paragraph (f) is the registry question – no Maine peer

maintains one, so this is a cost decision for the Board, but it is the natural home for the scope-of-right record that *Mason v. Crooker-Mulligan* shows is the real battleground years later.

7.7 RELIEF FROM FORM STANDARDS – NEW, AND THE MOST SUBSTANTIVE PROPOSAL

Approval of modified dimensional and form standards. Pursuant to 30-A M.R.S. §4353(4-C), the reviewing authority may approve a development proposal for a lot or building made nonconforming by this Code that does not meet the dimensional or form standards otherwise required, where the proposal meets the standards to the greatest practical extent and does not increase the nonconformity. An approval under this Subsection is **not** the granting of a variance. This Subsection does not apply within the shoreland zone.

This is the F9 fix, and it uses the statute's own words so that the "not a variance" characterisation holds. It needs the Board to decide who the reviewing authority is for each case, and it needs counsel to confirm the shoreland carve-out language.

Companion option, worth debating: a **deemed-conforming** clause providing that a building lawfully existing on the date it became nonconforming is conforming as to form standards for all purposes except expansion. That is how some form-based codes avoid classifying most of their town as nonconforming. *Argument against:* it gives up the leverage to bring buildings toward the standards over time, and Maine's stated policy is that zoning aims to eliminate nonconformities, not preserve them. *Argument for:* the leverage is theoretical in a town where the standards were written to describe the existing village, and the cost of nonconforming status is real and immediate (§8).

7.8 BURDEN AND EVIDENCE – AMENDING §25.D

The burden of proof establishing that any nonconformity is a legal nonconformity is, in all cases, upon the owner of the nonconformity and not upon the Town. **[borrowed, Town of Levant ordinance, enforced in Town of Levant v. Seymour]** Where the Town asserts that a lawfully established nonconforming condition has since been unlawfully expanded or altered, the burden of proving the expansion or alteration is upon the Town.

A nonconformity may be established by any credible evidence, including assessor records, aerial photography, tax or utility records, dated photographs, recorded instruments, prior permits, and sworn statements of persons with personal knowledge.

The second paragraph matters because most Newcastle nonconformities predate permitting entirely; the current §25.d.2 invites an applicant to produce a prior permit that can never have existed.

7.9 LOTS – REPLACING ART 2 §2.D

At minimum the Board must decide, and the text must say, four things: whether contiguous nonconforming lots in common ownership merge (and if so, which combinations); whether land may be added to a nonconforming lot; whether a nonconforming lot may be divided if every resulting lot is "as conforming as possible"; and how all of this sits with 12 M.R.S. §§4807-A to 4807-D. Merger will not be implied – if the Town wants it, it must say so; if it does not want it, silence produces uncertainty rather than the answer.

Also required, quoted rather than paraphrased:

An accessory dwelling unit must be allowed on a lot that does not conform to the municipal zoning ordinance if the accessory dwelling unit does not further increase the nonconformity. **[borrowed, 30-A M.R.S. §4364-B]**

7.10 HOUSEKEEPING

Fix the two stale cross-references (F14); normalise "nonconforming"; replace "this Ordinance"; renumber §25.f; rewrite Art 1 §1.b.5 to defer to §25; define "substantial reconstruction" where Art 4 §3.j.2 uses it, or point it at Art 3 §14.d.2; resolve "building" versus "structure" throughout; and check whether nonconforming uses are inside or outside the Code's defined term "Permitted", since Maine holds that a nonconforming use is not a permitted use unless the ordinance says so.

8. WHY THE REBUILD RULES MATTER MORE THAN THEY LOOK

An over-strict restoration rule does damage before any fire happens.

- Standard homeowner policies **exclude** the added cost of rebuilding to current code; that cost falls on the owner unless they carry an Ordinance or Law rider, typically capped at 10–25% of dwelling coverage.
- Fannie Mae's Selling Guide will not purchase loans where land-use rules "prevent the reconstruction or maintenance of the property improvements if they are damaged or destroyed."
- FHA requires every appraisal of a nonconforming property to state whether it may legally be rebuilt if destroyed. That question is asked at **every** sale and refinance, not only after a loss.
- Title insurers route nonconforming properties to a different endorsement.

So the practical effect of §25.f plus Art 5 §15.c.9, read together at their strictest, is to make some older Newcastle houses harder to insure, finance and sell today.

The counter-argument, stated fairly. Nonconformity is a tolerated harm, not a right. Strict rebuild triggers are the main lever a town has to bring old siting into line with current standards, and they keep faith with owners who built to the current rules at their own cost. Maine's own courts say the policy is elimination, not perpetuation. The Board should choose knowingly between the two, rather than inheriting the answer from 2020 by default.

9. WHAT THE BOARD IS BEING ASKED

1. **Structure** – consolidate the general rules into §25 and keep element-specific allowances, as §6 recommends? Or leave the structure alone and add only the precedence rule?
2. **Discontinuance** – twelve months with a valve and a residential carve-out, replacing six months?
3. **Restoration** – percentage-of-market-value tiers, or rebuild-to-prior-footprint within a window?
4. **Form-standard relief** – adopt the §4353(4-C) delegation? And with or without a deemed-conforming clause?
5. **Lots** – merge, or not, and say so.
6. **Registry** – worth the administrative cost?
7. **Precedence default** – more restrictive, or more permissive for lawfully existing conditions?

10. FOR COUNSEL

- Cite-check everything (see the note at the head of this memo).
- Confirm the §4353(4-C) delegation language and its shoreland carve-out.
- Confirm the ADU text against the current version of §4364-B; it has been amended repeatedly, most recently in 2025.
- Advise on amortization if the Board ever raises it: there is **no** Maine decision on amortization of a nonconforming use, only a signs statute and billboard cases. It would be an issue of first impression.
- Advise on the interface with the shoreland ordinance, which this memo does not cover: the shoreland minimums override contrary local text by their own terms, and no shoreland amendment is valid without the Commissioner's approval.

11. SOURCES

Statutes and rules. 30-A M.R.S. §§4351–4353, §4364-B · 12 M.R.S. §§4807-A to 4807-D · 38 M.R.S. §§438-A, 439-A · 06-096 C.M.R. ch. 1000 §§12, 17 (DEP shoreland guidelines) · 23 M.R.S. §1916 (signs).

Cases. *Town of Windham v. Sprague*, 219 A.2d 548 (Me. 1966) · *Frost v. Lucey*, 231 A.2d 441 (Me. 1967) · *Lovely v. Zoning Bd. of Appeals of Presque Isle*, 259 A.2d 666 (Me. 1969) · *Moody v. Town of Wells*, 490 A.2d 1196 (Me. 1985) · *Pleasant View Mobile Home Park v. Town of Mechanic Falls*, 538 A.2d 273 (Me. 1988) · *Mason v. Crooker-Mulligan*, 570 A.2d 1217 (Me. 1990) · *Total Quality, Inc. v. Town of Scarborough*, 588 A.2d 283 (Me. 1991) · *Boivin v. Town of Sanford*, 588 A.2d 1197 (Me. 1991) · *Powers v. Town of Shapleigh*, 606 A.2d 1048 (Me. 1992) · *Town of Orono v. LaPointe*, 1997 ME 185 · *Lewis v. Town of Rockport*, 1998 ME 144 · *Oliver v. City of Rockland*, 1998 ME 88 · *Town of Levant v. Seymour*, 2004 ME 115 · *Conway Lake Resorts v. Quisisana Resort*, 2006 ME 77 · *Gensheimer v. Town of Phippsburg*, 2007 ME

85 · *Trudo v. Town of Kennebunkport*, 2008 ME 30 · *Day v. Town of Phippsburg*, 2015 ME 13 · *Osprey Family Trust v. Town of Owls Head*, 2016 ME 89 · *Wolfram v. Town of North Haven*, 2017 ME 114 · *Hill v. Town of Wells*, 2021 ME 38.

Guidance. Maine Municipal Association, *Manual for Local Planning Boards* (2011) and *Board of Appeals Manual* · Maine Office of Community Affairs, *Housing Legislation Guidance* (March 2026) · Maine DEP, *Shoreland Zoning News* (March 2025).

Ordinances read in full. Camden · Boothbay Harbor · Damariscotta · Rockland · Brunswick · Topsham · Portland · Freeport · Yarmouth.

Form-based codes. SmartCode v9.2 · Miami 21 · Billings EBURD · Beaufort County · Buffalo Green Code. **Model clauses.** Tulsa Zoning Code §1.080 and ch. 80 · Va. Code §15.2-2311 · Haysville KS Art. 6 · Napa County §18.132.050.